
Holly Meadows Primary Audit Report**Audit Date: 23 January 2020****Report: Year 1 visit 1****DPE: Linda Mortimer School member: Headteacher – Jennie Wildsmith-Garton**

1. Visit details

The school was first visited in November 2018, however, unfortunately there was no report available for reference purposes.

At the time of the visit on 23.1.20, GDPR documents and policies were reviewed. This included DPE Best Practice areas, Compliance Checklists, SLA tool, Record of Processing and Compliance Manager being discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 7 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 6.1 below).

The Headteacher views the school's compliance with GDPR very seriously, undertaking audit walks on a regular basis and providing constructive feedback to staff.

2. Audit walk and findings on 22.1.20

Policies: The school currently has the NCC GDPR guidance document on the school website. The DPE model GDPR Policy and Privacy Notice* are being amended to reflect the school's current practice and will be forwarded to Governors for ratification at their meeting in February 2020. Once adopted these documents will be published on the school's website.

Privacy Notice* – the current DPE model Privacy Notice requires a more detailed list of third parties with whom the school shares personal data. This could be in the form of an appendices to the main document.

Best Practice Checklists: At the time of the visit these checklists were reviewed and updated. Progress in completing these checklists will be ongoing.

Training: The Headteacher and admin staff have attended NCC GDPR briefings in 2018. The school will now prioritise the Headteacher, senior teachers and senior administration staff to complete the DPE GDPR 101 online training, available on Knowledge Bank. This training will now also be included in the induction programme for new staff.

The Data Dashboard on Knowledge Bank has a training section where staff can access various 5-10 minute learning nuggets covering areas such as; Password Protection, Physical Protection, Data Breach, Subject Access Requests and Clear Desk policy.

Compliance Manager: This was demonstrated and a sample document was uploaded and shared with staff at the time of the visit. This tool can be used for any document where the school wishes to track if a document has been 'read and understood' eg Keeping Children Safe in Education, the school's Safeguarding Policy etc. Standard DPE documents such as the Clear Desk Policy, Photo and Video Guidelines, Working Away from School and the Breach Procedure could also be shared quickly and effectively with staff by using this tool.

Technical Measures

Website: The Headteacher will work with the IT Technician to ensure all images of past students are cleansed in an acceptable timeframe.

School Server: Data back-ups are managed by the NCC IT Technician. The Headteacher works with the IT Technician to ensure that the server is cleansed of old and out of date data. The school is moving towards more cloud- based solutions; Office 365, One Drive and Pupil Asset which will provide greater security of data.

Cyber Essentials Questionnaire: This document was downloaded and the school will request the IT Technician to complete. Information from this questionnaire may be required at the time of completing the Record of Processing and data mapping exercise.

Laptops: All school laptops are encrypted, password protected and accounted for on a regular basis.

iPads: All school iPads are password protected and the Headteacher will confirm with the IT Technician that 'find my iPad and Return to Factory Settings' are installed. Staff recognize the importance of cleansing student images from these devices. It is important to minimize the amount of student images stored at any one time and this can be done by regularly uploading images to a secure area of the server. This is especially important in Early Years when using student images to record their learning journeys.

Cameras: All school cameras are accounted for on a regular basis. All staff have been provided with guidance in the use of school cameras and are aware of the importance of cleansing memory cards of student images.

Observations from Audit Walk

Signing-in arrangements: The school uses the Cherry Carbonless signing- in system. The school needs to provide a notice to visitors signposting them to the location of the school's Privacy Notice, which will be on the school website.

Naming convention: The Headteacher confirms that from September 2020 all class lists, exercise books, work trays, files, displays and coat pegs will show first names only.

School Kitchen: Operated by Norse. Student allergy information is kept in a file and stored in a locked cabinet when not in use.

Student Care Plans: Are stored in individual's SEN files and are locked in cupboard or in the Headteacher's office. Medical Needs records are stored in the main office in a locked cabinet.

First Aid Records: are kept in the main office in locked cabinet.

Staffroom: Staff pigeonholes held documents such as; student consent forms, student behavior plans, student photos, confidential NHS reports, student specific risk assessments, appraisal documents, teacher observation reports and student observation reports as well as reports going back to 2013. Staff need to be aware of the serious risks of continuing such practice and that this should be stopped forthwith. It is good practice for all staff to routinely remove all information from their personal pigeonholes.

Kittiwakes Classroom: Locked cupboard had key remaining in lock – remove key during the school day. The class list relating to reading records showed both the first name and surname of each student. Please amend to first name only.

Puffins Classroom (EYFS): Learning Journals had both first name, surname and student picture on the front cover. Revert to first name only. A file containing transition records, was on display and easily accessible. Ensure that such records are kept securely.

Oyster Catchers: The classroom would benefit from a reorganization as resources and paperwork were cluttered. This classroom does not have a lockable cupboard. A file containing medical information was stored in the cupboard and this type of sensitive information should be retained in the student's personal file, in a locked cabinet. A file containing SEN and Intervention information was in the main classroom - this should also be stored in a locked cabinet. An in-tray was found to contain student collection sheets containing very specific family details, permission lists and parent consultation details. This type of information should be kept securely. Details of teacher's observations were also present and as this information is deemed confidential, should be filed and kept securely.

2. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

2.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

5. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

6. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>